



SPONSOR: Rep. Griffith & Sen. Hansen  
Reps. Morrison, Romer; Sen. Hoffner

HOUSE OF REPRESENTATIVES  
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 198

AN ACT TO AMEND TITLE 10 OF THE DELAWARE CODE RELATING TO PROTECTION FROM ABUSE PROCEEDINGS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend § 1045, Title 10 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 1045. Relief available; duration of orders, modification, and termination.

(a) After consideration of a petition for a protective order, the Court may grant relief in the form of any of the following:

(1) Restrain the respondent from committing acts of domestic violence, as defined in § 1041 of this title.

(2) Restrain the respondent from contacting or attempting to contact the petitioner.

(b) Relief granted under this section shall be effective for a fixed period of time not to exceed 1 year, except that the relief granted under paragraphs (a)(1) and (a)(2) of this section may be entered for a fixed period of time not to exceed 2 years, unless a longer period of time is ordered pursuant to subsection (e) or (f) of this section. years. The relief granted under paragraphs (a)(1) and (a)(2) of this section may be entered for a period of time greater than 2 years if one of the following conditions is met:

(1) The respondent consents to the entry of the protective order for a fixed period of time, up to and including a permanent protective order.

(2) A longer period of time is ordered by the court under subsections (c) or (f) of this section.

SYNOPSIS

This Act amends the Delaware Code to allow for a respondent in a protection from abuse proceeding to consent to the entry of a permanent protection order without the need for the Court to make a finding as to the presence of the aggravating factors of 1045(f) of Title 10.